



DEPARTMENT OF THE NAVY

CRANE DIVISION
NAVAL SURFACE WARFARE CENTER
300 HIGHWAY 361
CRANE INDIANA 47522-5001

IN REPLY REFER TO:

J&A Number: CR-22077

Code: WXPV

P.R. Number: N0016422RWP80

JUSTIFICATION AND APPROVAL FOR USE OF OTHER THAN FULL AND OPEN COMPETITION

1. Contracting Activity.

Naval Sea Systems Command, Naval Surface Warfare Center, Crane Division (NSWC Crane), Radar & IR/RF Systems Contracts Branch, Code 0241.

2. Description of the Action Being Approved.

Award of a five-year, Firm-Fixed-Price (FFP), Indefinite-Delivery, Indefinite-Quantity (IDIQ) contract on an other than full and open competition basis to Communications and Power Industries (CPI), Palo Alto, California 94304 (CAGE 99313). The contract will procure supplies and services in support of U.S. Navy new ship construction, U.S. Navy ship sustainment, and Foreign Military Sales (FMS) customers.

3. Description of Supplies/Services.

The contract to be awarded to CPI will enable the procurement of new, repaired, and rebuilt Continuous Wave Illuminator Traveling Wave Tubes (CWI TWTs). CWI TWTs are microwave tubes installed in the MK-99 FCS, located on board the CG-47 Class AEGIS Cruisers, DDG-51 Class AEGIS Destroyers, and foreign military ships.

Delivery requirements will be identified in each individual delivery order. The value of all orders under this contract is estimated to be \$11.3M. This is based on a combination of historic costs for the TWT and the anticipated orders expected during the contract period of performance. The Government's minimum needs have been verified by the certifying technical and requirements personnel.

The table below identifies the projected funding for this contract:

Estimated Dollar Value (in Millions)

	FY 22	FY 23	FY 24	FY 25	FY 26	Totals
FMS						
O&MN						
OPN						
R&D						
Total						\$11.3

4. Statutory Authority Permitting Other Than Full and Open Competition.

10 U.S.C. 2304(c)(1), Only one responsible source and no other supplies or services will satisfy agency requirements.

5. Rationale Justifying Use of Cited Statutory Authority.

CPI Palo Alto is the only known source that has the capability to produce, repair, and rebuild the CWI TWT used in the MK-99 FCS.

The TWT design was developed by CPI to meet the Navy's requirements of Weapons Specification (WS)-33400, which specifies performance, and NAVSEA Drawing 6155775, which specifies interface requirements. The design was based on an existing CPI design for a similar TWT; CPI has asserted restricted rights for this design. Although CPI has proprietary rights to the initial CWI TWT baseline design, the Government holds Government Purpose Rights to Government-funded design improvements to the CWI TWT. However, without the initial design, the Government-funded design improvements to the CWI TWT Technical Data Package (TDP) cannot be used independently to obtain competition. In addition to the restricted data rights on the initial design, CPI's manufacturing processes and production level drawings, which are critical in producing and repairing the TWT, are also proprietary to CPI. The Government asked CPI on 12 April 2022 if they would sell any of the technical data rights for the CWI TWT to the Government, but CPI replied that they were not interested in selling the data rights.

Additionally, NSWC Crane, as the In-Service-Engineering-Agent (ISEA) and Acquisition Engineering Agent (AEA) for CWI TWTs on the AEGIS weapon systems, requires the repair sources to be certified. Currently, CPI Palo-Alto is the only ISEA-certified source for new, repaired, and rebuilt CWI TWTs. Certification is a lengthy process that takes an estimated 3 years and 6 months minimum, the timeline of which follows:

Estimated Time-Line for ISEA Certification

Time	Events
3 yrs. 6 mos.	Total

*Government testing includes electrical, life, environmental, and Grade A shock.

Unacceptable schedule delays will be incurred if award is made to a source other than CPI. There is also a lack of funding available to qualify another vendor.

Duplication of costs in FY23 are estimated to be \$12,400,887 if a source other than CPI was considered for this award. This consists of:



6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable.

A sources sought synopsis was posted to the Government-wide Point of Entry (GPE) on 12 October 2021, in accordance with Defense Acquisition Regulations Supplement (DFARS) PGI 206.302-1(d), and listed for 30 days. No responses were received.

A synopsis was posted to the GPE on 17 December 2021. To-date, no responses have been received, and any will be considered.

Market research was conducted in accordance with FAR Part 10. The requiring technical activity used the World Wide Web as a research tool to locate sources for microwave tubes meeting key requirements. Three sources were identified as TWT manufacturers - CPI, Teledyne and L-3. However, only CPI has a product that operates at the required frequency and has the required power output. No additional market research was conducted, because it is not practicable for the reasons discussed in paragraph 5 above, for any company other than CPI Palo Alto to provide the required services.

7. Determination of Fair and Reasonable Cost.

The Contracting Officer has determined that the anticipated cost to the Government for the supplies and services covered by this Justification & Approval will be fair and reasonable. It is anticipated that DCMA pricing assistance and/or DCAA audit services of the contractor's proposal will be requested, along with the offeror's certificate of current cost and pricing data to support the fair and reasonable price determination. Both price analysis and cost analysis of the proposal, along with a technical evaluation, will also be conducted.

8. Actions to Remove Barriers to Future Competition.

For the reasons set forth in Paragraph 5, NSWC Crane has no plans at this time to compete future contracts for these items. If another potential source emerges, NSWC Crane will assess whether competition for future requirements is feasible.

CERTIFICATIONS AND APPROVAL

TECHNICAL/REQUIREMENTS CERTIFICATION

I certify that the facts and representations under my cognizance which are included in this Justification and its supporting acquisition planning documents, except as noted herein are complete and accurate to the best of my knowledge and belief.

Technical Cognizance:

[REDACTED]

Requirements Cognizance:

[REDACTED]

LEGAL SUFFICIENCY REVIEW

I have determined this Justification is legally sufficient.

[REDACTED]

CONTRACTING OFFICER CERTIFICATION

I certify that this Justification is accurate and complete to the best of my knowledge and belief.

[REDACTED]

Upon the basis of the above justification, I hereby approve, as the Competition Advocate for the Contracting Department, the solicitation of the proposed procurement(s) described herein using other than full and open competition, pursuant to the authority of 10 U.S.C. 2304(c)(1).

MCGARVEY.RICHARD.L.II [REDACTED]

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MCGARVEY.RICHARD.L.II [REDACTED]
Date: 2022.08.24 14:37:21 -04'00'

Kelly Siffin NSWC Competition Advocate

Phone No. [REDACTED]

Date [REDACTED]